SUPERGIANTS (PVT) LIMITED

Versus

ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare 25 August, 3 September 2026.

T.L. MAPURANGA, for the applicant

T.L. MARANGE, for the respondent.

URGENT COURT APPLICATION

CHIRAWU-MUGOMBA J: This matter was placed before me upon remittal from the Supreme Court *de novo*. The applicant seeks on an urgent basis as per R59(6) a *declaratur* and consequential relief as per s14 of the High Court Act, [Chapter *7:06*]. The relief relates to the detention by the respondent of applicants' Scania Horse truck and a trailer laden with diesel. The applicant contends that the detention is unlawful. On its part, the respondent contends that the detention is lawful and justified. I have refrained from going into the respective submissions in detail due to preliminary issues that the respondent has raised relating to the defectiveness of the form used by the applicant. The respondent avers that the correct form should be number 23 as per the rules and it is mandatory and provides procedural exigencies which respondent ought to comply

with should they wish to oppose the application. Further that it does not state with whom the notice of opposition must be filed and at what registry. Additionally, the respondent avers that there is no valid founding affidavit because none was sworn to before a commissioner of oaths. There is no indication that the affidavit was attested to under oath. What is apparent is that there is only a statement and not an affidavit. The respondent thus prays that the application be struck off the roll with costs. In response to these in the answering affidavit, the applicant avers that the form complies with the rules as contemplated in R59(6). The procedural rights were outlined and the respondent has since filed its opposing documents. If the court finds that there has been non-compliance, the applicant seeks the court's indulgence and condonation. On the founding affidavit, the applicant avers that as can be gleaned from the opening statement of the affidavit, the deponent states that an oath was duly taken and hence this suffices.

It is trite that , a court must first dispose of preliminary issues and ranking them according to whether they are dispositive or dilatory. In my view, the contention regarding the form if found to have merit will result in the matter being struck off the roll. Equally, the contention regarding the affidavit if found to have merit will mean that the applicant is non-suited, essentially that there is no application before the court.

From this discussion, two issues emerge:-

1. Whether or not the form used for the application is appropriate?

2. Regard being had to the founding affidavit bearing only a date and not indicating that it was sworn to, whether or not there is an application before the court?

In the heads of argument on these preliminary issues, the applicant makes the following submissions. That the matter was filed as an urgent court application and there is confusion on this aspect. Rule 59(6) lacks precision. This was aptly captured by DEME J, in *Zimbabwe Anti-Corruption Commission and ors vs. Mangosi and anor,* HH-137-25. If the court finds that there is no compliance, it is urged to find that there has been substantial compliance and therefore it should condone the applicant in the interests of justice- *Telecel Zimbabwe (pvt) Limited vs. POTRAZ and anor,* HH-446-15. The applicant urges the court to take note of the fact that the law does not state whether an oath must be taken at the start or the end of the affidavit. What the applicant did is appropriate, that is stating that he has been duly sworn in the opening statement of the affidavit.

Per *contra,* the respondent submits that compliance with the rules is mandatory. A court application shall be in form number 23 as supported by one or more affidavits. The form contains procedural rights that must be followed Failure by the applicants to state which seat of the High Court the notice of opposition should be filed is fatal. Reliance is placed on *Marick Trading (pvt) Limited vs Old Mutual Life Assurance Company and anor,* 2015 (2) ZLR 343. The respondent on the second issue submits that the application is invalid for want of a proper affidavit. The attestation clause reads that the document was dated at Harare on the 16th of January 2026.

In the absence of proof that it was sworn to, the affidavit is fatally defective. Reliance is placed on *Prosecutor General vs Makarichi and ors,* HH-502-23 on the definition of an affidavit.

At the hearing, the submissions largely mirrored the heads of argument filed of record. Mr. *Marange* submitted that on the authority a litigant cannot use an incorrect form. An urgent court application is a combined court application and urgent application. The form used is defective and it is a nullity- *Marick Trading*. On the founding affidavit, it is clear that the attestation clause as appears on page 13 is a date. An affidavit is not dated but must be on oath- *Prosecutor General* case. Proper wording should have been , ' thus sworn to and signed'. It is apparent that the applicant being aware of the defect, corrected it in the answering affidavit which correctly captures that it was sworn to.

Mr. *Mapuranga* dismissed the submissions by the respondent. On the seat of the High Court, it is clear that the form clearly states the seat as that of the High Court Harare. This appears three times in the form and it is baffling why the respondent has made such a claim. There is only one High Court though with different seating places. *Marick Trading* case dealt with a different issue. It dealt with use of the wrong form entirely and not seat of the court. On the second preliminary point, with reference to the record, on page seven, it is clear that the attestation clause appears on first words of the affidavit in which the deponent states that they take 'oath and swear that'. The words sworn to at the end of the affidavit are not mandatory. The *Prosecutor General* case deals with the requirement that the person before an affidavit appears is a commissioner of oaths. In *casu,*

the stamp of the commissioner is not disputed. The end portion of the affidavit cannot be elevated to the law. In South African law, there is an entire paragraph that is required but our Supreme Court has stated that it is not part of our law.

In rebuttal, Mr.*Marange* reitatated that anything done contrary to the law is a nullity- *Mukunhlani and ors Sports and Recreation Commission and ors,* HH-469-19. It was held that a litigant cannot use a wrong form. In *Firstel Cellular (pvt) Limited vs*. *Netone Cellular (pvt) Limited,* SC-1-15, the court is determining attestation of affidavits stated that it was mainly a matter of practice. The question to be answered is whether an affidavit is sworn to or signed. The court can only be satisfied if the words, sworn to are included. The clause in question was not done before a commissioner. What is important is what is sworn to before a commissioner of oaths.

The format of an urgent court application no doubt has given the courts sleepless nights. Form 23 relates to an ordinary court application and not one that is urgent. Whilst an ordinary court application should give a specific time frame depending on the circumstances within which to file a notice of opposition and opposing affidavit, it appears to me that if a matter is urgent, a shorter time frame can be suggested by the applicant and a court on good cause shown must agree or disagree with this short period. Therefore in my view, apart from the shorter time frame, the form should be in the form 23 format. This means that the only deviation(s) should relate to the time frames. That denotes a form 23 as varied. I have had a close look and scrutiny of the form used by the applicant. It is a

varied version of form 23 especially in relation to the time frames. Given the fact that there is no current format of a form for an urgent court application, in my view there should not be any issues with the form used by the applicant. It notifies the respondent of the intention to approach the court for relief, it gives shortened time frames for filing of opposing documents, it informs the respondent of the need to serve opposing documents on the applicant and it notifies the respondent of the consequences of not acting. *Marick Trading* matter dealt with very specific forms that had mandatory language. Unless there is a specific form for urgent court applications, I find the respondent's submission to be without merit. I am fortified in my view by the words of DEME J in the *Zimbabwe Anti- Corruption* matter to be apt that;

> "It is evident from the appropriate Forms attached to the Rules that there is no specific Form assigned to the urgent court application. This alone causes confusion of how shorter time frames may be expressed on the face of the court application, if it is to be stated thereon. Adv *Mpofu* argued that the applicant in an urgent court application must propose shorter time frames in the certificate of urgency and the founding affidavit and then motivate the court on the hearing of the case management. Ms *Nyamidzi* submitted that the court application may specify a shorter time frame for *dies induciae* on the face of the court application. I am not able to find fault with both approaches given that there is no exactness in Rule 59(6).
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> Further, given the multiple issues of ambiguity arising from Rule 59(6) which I have highlighted before, I am of the firm view that filing of urgent court application requires some attention as this area largely remains ungoverned by the Rules of this court. In terms of Section 176 of the Constitution, this court has inherent power to protect and regulate its processes.
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> Filing of urgent court application with this court definitely requires amendments of the Rules to specify how the urgent court application may appear. The diametrically opposite arguments presented by both counsel suggest that there is an urgent need for the amendment which may bring clarity. Before Rule 59(6) is amended, this court must develop mechanisms to protect and regulate its own processes to ensure that justice is delivered expeditiously and fairly".

To non-suit the applicant on the basis of 'lack of compliance' with form 23 in my view will be a miscarriage of justice.

I now turn to the second issue relating to the founding affidavit. To answer this question, one perhaps needs to ask- what is an affidavit? What is apparent is that there are various elements to an affidavit such that it can be gleaned what it is. In R58(4)(a) of the High Court rules of 2021, it is clearly stated that an affidavit shall be made by an applicant or respondent by a person who can **swear** to the averments or facts set out therein. In, the *First Cellular (Pvt) Limited* matter, the Supreme Court had occasion to discuss the issue regarding the role of a commissioner of oaths as follows,

> "The respondent's founding affidavit in the court below was sworn before one Raymond Moyo, a registered legal practitioner, who appended his signature above the designation "Commissioner of Oaths". The stamp used for the purpose is one that would ordinarily have been used to certify copies of original documents as being true and correct. However, it also denotes Raymond Moyo as a commissioner of oaths and notary public.
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> Counsel for the appellant cites the case of *Deyi* v *The State* [2013] ZAGPPHC 75 for the proposition that the stamp adopted must clearly indicate the status of the commissioner of oaths. In that case, the court was called upon to apply the directory provisions of regulations, made under the South African Justices of the Peace and Commissioners of Oaths Act 1963, which require a commissioner of oaths to state his or her designation and the area for which he or she holds his appointment of office. The commissioner in question was evidently a police constable, but the stamp that was used was that of a magistrate. The court found that this stamp misrepresented the office of the commissioner and was likely to cause confusion in that regard. Consequently, it declined to exercise its discretion in favour of receiving the document relied upon in that case as a sworn affidavit.
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> It is common cause that there is no specific legislation regulating the issue in this jurisdiction and that the matter is one that is governed by practice. In that regard, what is required is that any stamp that is used to designate a commissioner of oaths should clearly identify the person before whom an affidavit is deposed and the office or capacity in which he or she acts as a commissioner. *In casu*, it is not disputed that Raymond Moyo is a legal practitioner and a notary public and, as such, a recognised commissioner of oaths. The respondent has therefore verified its cause of action in an affidavit, deposed by its functionary duly authorised thereto, before a clearly identified commissioner of oaths. That, in my view, suffices for the intended purpose of adducing evidence under oath and renders the validity of the respondent's founding affidavit manifestly impervious to challenge".

In, the *Prosecutor- General* matter, CHIKOWERO J, postulated as follows,

> "An affidavit is a statement, in documentary form, **sworn** to before a commissioner of oaths. The deponent must make the oath and swear to the statement, as well as sign it, before the commissioner of oaths. The latter must administer the oath and sign the affidavit at the same time and in the presence of the deponent. For a document to qualify as an affidavit the foregoing requirements must be met".

In, Muzanenhamo v *Gadaga and Ors* HH 65/2006. GOWORA J (as she then was) stated as follows:-

> "The applicant contends that the document is an affidavit. An affidavit must be **sworn** before a person competent to administer an oath.

Other trite requirements are the date of signing of the affidavit. A close scrutiny of the founding affidavit shows that it is signed by both the deponent and the commissioner of oath. That has not been contested. What is in contestation is whether or not the deponent swore to the affidavit before the commissioner of oaths. I do not agree with the submission by Mr. *Mapuranga* that what is important are the opening words to the affidavit. In my view, what is critical is evidence that the document was sworn to before a commissioner of oaths. The words that appear are that it was dated and not sworn to. That is a great difference. Dating simply means that a date is inserted but swearing means taking an oath and affirming that the contents are the truth. After all, an untruth in an affidavit can result in severe consequences. Unlike a dated document, if one lies in an affidavit, they can even face sanctions. In my view, the only way in which the court can be satisfied that indeed the document was sworn to is specific inclusion of the word, ' sworn'. This then fulfils the requirement in R58(4) (a) that a deponent has sworn positively to the facts and averments. Until sworn to, it remains a statement. In the absence of proof and the founding affidavit being the key pleading that denotes that a matter is before the court by way of application, there is in essence no

application before the court. Accordingly, the second contention by the respondent that there is no application before the court has merit. What is before the court is a nullity. To that end, the matter will be struck off the roll.

On costs, it is trite that costs are at the discretion of the court. Having found against the applicant only for reasons of the invalid affidavit, in my view the most apt order of costs is that these should be awarded against the applicant but on the ordinary scale. There is no justification for costs on a higher scale.

DISPOSITION

1. The application be and is hereby struck off the roll.
2. The applicant shall pay costs.

Chirorwe and partners, applicant's legal practitioners

Zimbabwe Revenue Authority, Legal Services Division, respondent's legal practitioners.